

RENT DEMAND LETTER

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This Rent Demand Letter (this "**Demand**") is given as of [DATE] by [LANDLORD LEGAL NAME], of [LANDLORD ADDRESS] (the "**Landlord**"), to [TENANT LEGAL NAME(S)], of [PREMISES ADDRESS] (the "**Tenant**"), regarding unpaid rent due under the lease for the premises described below (the "**Premises**").

The Landlord and the Tenant are each a "**Party**" and together the "**Parties**."

Recitals. The Landlord and the Tenant are parties to a written or oral lease for the Premises. Rent that is now due and payable under that lease remains unpaid. The Landlord gives this Demand to notify the Tenant of the amount owed, to demand payment within the time allowed by the lease and applicable law, and to state the consequences of non-payment. This Demand is intended to comply with applicable notice requirements; because those requirements vary, the Landlord should confirm the required notice period, form, and method of service under local law before relying on this Demand.

1. The Lease and the Premises

1.1 The Premises. This Demand concerns the residential or commercial premises located at [FULL PREMISES ADDRESS, INCLUDING UNIT] (the "**Premises**").

1.2 The lease. The Tenant occupies the Premises under a lease dated [LEASE DATE] (the "**Lease**"), [written / oral / month-to-month], for a term [beginning [START DATE] and ending [END DATE] / on a month-to-month basis].

1.3 Rent obligation. Under the Lease, rent of [CURRENCY AND AMOUNT] is due on the [DAY, e.g. 1st] of each [month / other period], payable to the Landlord at [PAYMENT ADDRESS OR METHOD].

1.4 All tenants bound. This Demand is directed to every person obligated under the Lease, and each such person is jointly and severally responsible for the amounts demanded to the extent the Lease and applicable law provide.

2. Statement of the Amount Due

2.1 Itemization. As of the date of this Demand, the following amounts are past due under the Lease:

Period / item	Amount
Rent for [MONTH/PERIOD]	[AMOUNT]
Rent for [MONTH/PERIOD]	[AMOUNT]
Late fee(s) (if permitted by the Lease and law)	[AMOUNT]

Other charges: [DESCRIBE, e.g. utilities, NSF fee] [AMOUNT]

Total now due [TOTAL]

2.2 Late fees and charges. Late fees and other charges are included only to the extent expressly permitted by the Lease and not prohibited or capped by applicable law. If any charge is later determined to be impermissible, the balance is reduced accordingly.

2.3 Continuing rent. Rent continues to accrue under the Lease. Amounts coming due after the date of this Demand are additional to the total stated above.

2.4 Application of payments. The Landlord will apply payments received in the order required by the Lease and applicable law. Acceptance of a partial payment does not waive the Landlord's rights as to the remaining balance, except to the extent applicable law provides otherwise.

3. Demand for Payment

3.1 Demand. The Landlord demands that the Tenant pay the total amount stated in Section 2.1, plus any rent that becomes due before payment, in full.

3.2 Deadline. Payment must be received within [NUMBER] days after this Demand is served (or by [SPECIFIC DATE]), which the Landlord believes meets the minimum cure or notice period required by applicable law. [CONFIRM THE REQUIRED NUMBER OF DAYS UNDER LOCAL LAW, THIS VARIES.]

3.3 How to pay. Payment must be made by [CASH / CERTIFIED CHECK / MONEY ORDER / ELECTRONIC PAYMENT TO [DETAILS]] and delivered to [NAME AND ADDRESS OR PORTAL]. [STATE WHETHER PERSONAL CHECKS ARE ACCEPTED.]

3.4 Right to cure. If applicable law gives the Tenant a right to cure the default by paying the amount due within the deadline, payment of the full amount in Section 2.1 within that time will reinstate the Lease, except as limited by law.

4. Consequences of Non-Payment

4.1 Termination and possession. If the Tenant does not pay the full amount due within the time stated, the Landlord may terminate the Tenant's right to possession and pursue eviction (an unlawful detainer or summary possession proceeding) and any other remedy available under the Lease and applicable law.

4.2 Money judgment. The Landlord may seek a judgment for unpaid rent, permitted late fees, and, where allowed by the Lease and law, court costs and attorneys' fees.

4.3 No self-help. Nothing in this Demand authorizes any unlawful action. The Landlord will not change locks, remove the Tenant's belongings, shut off utilities, or otherwise attempt to remove the Tenant except through the lawful process required in the jurisdiction.

4.4 Mitigation and reletting. Where required by applicable law, the Landlord will take reasonable steps to mitigate damages, including reasonable efforts to re-rent the Premises after recovering possession.

5. Tenant Protections and Reservations

5.1 Reservation of rights. The Landlord reserves all rights and remedies under the Lease and applicable law. No right is waived by giving this Demand, by accepting a partial payment, or by any delay in enforcement.

5.2 Government and local protections. This Demand is given subject to any applicable rent-control, just-cause, repayment-plan, notice, or tenant-protection requirements, and to any rental-assistance program that may apply. The Tenant may have rights or defenses under local law and is encouraged to seek advice.

5.3 Disputed amounts. If the Tenant believes any amount stated is incorrect, the Tenant should contact the Landlord in writing within the cure period at **[LANDLORD CONTACT]** describing the dispute. Raising a dispute does not by itself extend the deadline unless applicable law provides otherwise.

5.4 Communications. This is an attempt to collect a debt and to enforce the Lease. **[IF A THIRD-PARTY COLLECTOR SENDS THIS, INCLUDE ANY REQUIRED DEBT- COLLECTION NOTICES.]**

6. Service of This Demand

6.1 Method of service. This Demand is being served by **[PERSONAL DELIVERY / POSTING AND MAILING / CERTIFIED MAIL, RETURN RECEIPT / METHOD REQUIRED BY LOCAL LAW]**.

6.2 Date of service. The date of service is **[DATE]**, and the cure period in Section 3.2 is calculated from that date in the manner required by applicable law.

6.3 Record of service. The Landlord will retain proof of service appropriate to the method used (such as a certificate of mailing, return receipt, or declaration of personal service).

7. General Provisions

7.1 Governing law. This Demand and the Lease are governed by the laws of the State of **[STATE]** and the local ordinances of **[COUNTY/CITY, STATE]**, which control over any inconsistent term of this Demand.

7.2 Severability. If any part of this Demand is unenforceable, the remainder stays in effect, and the Demand is read to require what local law permits.

7.3 No legal advice. This Demand is not legal advice to the Tenant. The Tenant may wish to consult an attorney or a local tenant-assistance resource.

7.4 Headings. Headings are for convenience only and do not affect interpretation.

IN WITNESS WHEREOF, the Landlord has executed and served this Rent Demand Letter as of the date first written above.

LANDLORD / AUTHORIZED AGENT

Signature: _____

Printed name: **[NAME]**

Title: **[LANDLORD / PROPERTY MANAGER / AGENT, OR N/A]**

Date: _____

Proof of Service. I served this Demand on the Tenant by the method stated in Section 6.1 on **[DATE]** at **[LOCATION]**.

PERSON SERVING

Signature: _____

Printed name: **[NAME]**

Date: _____

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